CASE COMMENT / PROFESSIONAL ETHICS

A.S. Mohammed Rafi v. State of Tamil Nadu

Can a Bar Association refuse legal representation to an accused?

Supreme Court of India · 6 December 2010

(2011) 1 SCC 688 | AIR 2011 SC 308

Presented by: _____ Class: _____

CASE CONTEXT

One judgment, connected proceedings

The judgment dealt with two connected tracks.

Rafi’s criminal appeal arose from his FIR. Connected civil appeals addressed the Coimbatore Bar Association’s resolution not to represent accused policemen.

THE ETHICS QUESTION

Can a collective Bar resolution prevent every member from appearing for a particular accused?

The Court said no. A collective boycott is incompatible with professional ethics and the right to legal representation.

The dispute and the legal question

WHAT HAPPENED

01 A Bar resolution

No Coimbatore Bar member would defend the accused policemen in the criminal case.

02 A broader concern

The Court noted similar boycotts aimed at particular accused persons in other cases.

03 A question of principle

Does professional choice belong to each advocate, or can a Bar association impose a collective refusal?

ISSUE

May a Bar Association refuse representation to a named accused or category of accused?

The Court considered Article 22(1) and the Bar Council of India Rules on professional conduct.

REASONING

Two legal anchors

01

Article 22(1)

An arrested person must not be denied the right to consult and be defended by a legal practitioner of their choice.

02

BCI Rules, Chapter II

An advocate is generally bound to accept a brief at a fee consistent with their standing and the case, subject to special circumstances.

Individual choice may exist; collective coercion cannot extinguish access to counsel.

The judgment ties professional ethics to the rule of law and a fair criminal process.

What the Supreme Court decided

HOLDING

A Bar Association cannot impose a collective boycott of a particular accused.

The Court declared such resolutions null and void as contrary to constitutional norms and professional ethics.

DISPOSITION

Rafi criminal appeal

State directed to pay total compensation of Rs 1.5 lakh; the FIR against Rafi and the related FIR against police were quashed under Article 142.

Connected civil appeals

The observations against the Bar Association were quashed; the Court declared collective boycott resolutions null and void.

The ratio: representation is not endorsement

Defending an accused safeguards the process; it does not approve the alleged conduct.

A fair trial needs counsel

The accused must be able to challenge the charge and test the prosecution case through legal process.

Public opinion is not adjudication

An accused cannot be denied a defence because the charge is unpopular or disturbing.

The Bar must remain independent

A collective resolution cannot make access to a lawyer depend on social approval.

CONCLUSION

What this case asks of future advocates

When the accused is unpopular, professional ethics matter most.

In practice

Assess a brief independently. Do not let a collective boycott decide who may be represented. Preserve the court's ability to test the case on evidence and law.

For discussion

Can a lawyer personally decline a brief? How is that different from a Bar Association directing every member to refuse it?

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Constitution of India, Article 22(1) • Bar Council of India Rules, Chapter II